
Journal

2007 CLC 281

Court

SHARIAT COURT OF AZAD JAMMU & KASHMIR

Date

2006-11-23

Appeal No.

CIVIL APPEALS NOS. 16 OF 2005

Judge

IFTIKHAR HUSSAIN BUTT

Parties

MST. KOUSAR BEGUM AND ANOTHER—APPELLANTSVERSUS ,MATLOOB HUSSAIN SHAH AND 2 OTHERS— RESPONDENTS

Lawyers

MUHAMMAD ASIF KAYANI FOR APPELLANT (IN CIVIL APPEAL NO. 16 OF2005).SARDAR KHAN FOR RESPONDENTS (IN CIVIL APPEAL NO. 16 OF 2005). SARDAR KHAN FOR APPELLANT (IN CIVIL APPEAL NO.81 OF 2004).| ISARDAR NAZAR MUHAMMAD KHAN FOR RESPONDENT (IN CIVIL APPEAL • NO.81 OF 2004). .

Statutes

AZAD JAMMU AND KASHMIR FAMILY COURTS PROCEDURE RULES 1998 - R. 3(1) AZAD JAMMU AND KASHMIR FAMILY COURTS ACT, 1993 - S.5, SCHED, AND SS.7 AND 22 CIVIL PROCEDURE CODE (V OF 1908), O.VI - RR. 14 AND 15 INTERPRETATION OF STATUTESDIRECTORY OR MANDATORY PROVISION

Judgment

IFTIKHAR HUSSAIN BUTT, J.— As the above titled appeals relate to the common question of law; therefore, these have been consolidated and will be disposed of by this single judgment. .

Brief facts forming the background of above mentioned appeals are that Mst. Kousar Begum, appellant filed three different suits (i) for recovery of dower amounting to Rs.80,000 (ii) for recovery of dowry * and (iii) for providing her maintenance before Judge, Family Court Poonch, - Rawalakot. The respondent resisted all three suits and refuted the allegations levelled in the plaint.

' The Court below consolidated all three suits and framed 8 issues * r * in the light of the pleadings of the parties vide its order, dated 12-7-2002. The case was at the stage of final arguments when the respondent filed an application for dismissal of the plaintiff's suits on the ground that the plaints have neither been signed by the appellant nor have been verified by her; therefore, are liable to be dismissed. The 1 Court below after inviting objections upon the aforesaid application, dismissed all three suits on the ground that the appellant's plaints were found unsigned and unverified in the light of R.3(I)? . AJK Family Court Procedure Rules, 1998 (hereinafter to be referred as. Family Courts Rules), vide its decision dated 16-2-2005. Hence, this appeal.

" r * Muhammad Ishfaq Khan filed a suit for restitution of conjugal rights before Judge, Family Court Poonch Rawalakot on 8-10-2003, which was resisted by Mst. Fozia Sabir. She also presented a suit for recovery of dower amounting tq Rs.2,00,000 against Muhammad Ishfaq Khan. The respondent filed his written statement and submitted for dismissal of the suit.

-L The learned Judge, Family Court consolidated both the suits and I in the light of the pleadings of the parties framed 7 issues vide its order, dated 12-6-2004. Mst. Fozia Sabir, the respondent filed an application for dismissal of the suit on the ground that the plaint has neither been signed nor been verified by the plaintiff-appellant; therefore, it is liable to be dismissed. After hearing both the parties, the Court below dismissed both the suits for the reason that the plaint has neither been signed nor verified by the plaintiff vide its decision, dated 14-10-2004. Feeling aggrieved and dissatisfied by the aforesaid decision, Muhammad Ishfaq, appellant, filed an appeal which is subject-matter of this judgment.

' In support of the appeal, Muhammad Asif Kayani, Advocate, for Mst. Kousar Begum, appellant zealously argued that all three cases were fixed for final arguments when an application for rejection of plaint was filed by the respondent. The learned counsel further contended that the appellant also presented an application for grant of permission to sign the plaint but the trial Court arbitrarily not only dismissed the aforesaid application but also rejected the suits of the appellant under Rule 3(1) of the Family Courts Rules. The learned counsel pointed out that although it has been provided in Rule 3(1) of the Family* Courts Rules that a plaint shall be signed and verified by the plaintiff but in case of non-compliance V ' of the aforesaid rule no penalty has been provided; therefore, the nature of rule is directory and not mandatory but the trial Court fell in grave error while dismissing the suits filed by the appellant. In support of the arguments reliance was placed upon PLD 1974 BJ 4, PLD 1987 Kar. 926 and 1996 SCR 281.

Sardar Khan, Advocate the learned counsel for the respondent, Matloob Hussain Shah, controverted the arguments faised by the learned counsel for the appellant and submitted that the perusal of word "shall" appearing in Rule 3(1) of Family Court Rules shows the intention of the Legislature; therefore, the nature of above mentioned rule is mandatory and its non-compliance entails dismissal of the suit. The learned counsel further contended that neither the

plaint was signed nor verified by the plaintiff; therefore, the impugned decision does not warrant any interference. The learned counsel relied upon 1997 MLD 2962, in support of his arguments. .

At the same time. Sardar Khan, Advocates, the learned counsel » * while appearing on behalf of Muhammad Ishfaq Khan, appellant, took an inconsistent and self-contradictory stand and argued that the plaint of Muhammad Ishfaq Khan was signed and verified by his counsel; therefore, no illegality has been committed on the part of appellant on account of non-signing the plaint himself. The learned counsel maintained that no penal clause has been provided in case of non-compliance of Rule 3(1) of the Family Courts Rules; therefore, the nature of rule is just directory and not mandatory and in such-like cases the plaint cannot be rejected but the trial Court failed to appreciate the true legal position while recording the impugned decision. The learned counsel referred to me the following authorities in support of his arguments:— p * (1) PI*D 1974 BJ 4 and (2) PLD 1992 Kar. 302.. .

On the contrary, Sardar Nazar Muhammad Khan, the learned counsel for Fozia Sabir; respondent, argued that it was incumbent upon the appellant to follow the mandatory provisions of Rule 3(1) of the Family Courts Rules, therefore, the impugned decision may be maintained.

w Having considered the arguments raised by the learned counsel for the parties and the case-law on the subject, I find that the arguments p advanced by the learned counsel for appellants Mst: Kousar Begum and Muhammad Ishfaq appear to be well-founded and require serious consideration. The moot point in the instant case is that whether it was incumbent upon the plaintiffs-appellants to sign and verify themselves the plaint filed by them. Section 7 of the Family Courts Act, 1993 deals with d the institution of suits. Section 7(1) of the aforesaid Act postulates that “every suit, before a Family Court shall be instituted by the presentation of a plaint or in such other manner as may be prescribed.” Section 22 of the Act, empowers the Government to make rules to carry into effect the provisions of the Act. In order to appreciate the proposition, it will be fruitful to examine the provisions contained in Rule 3(1) of Family Courts Rules. It is reproduced below:— 1 m “Institution of plaint.— (1) A plaint under subsection(I) of section 7 shall be in writing, signed and verified by the plaintiff, and shall be presented to the Court, having jurisdiction under Rule 4 of these rules by the plaintiff or through a counsel, and where the plaintiff is, a female by her agent. ” - The cursory survey of relevant provision of rule shows that by using the word “shall” it has been made incumbent upon a plaintiff to sign and verify his/her plaint but it transpires from the careful perusal of the aforesaid rule that no penalty has been provided for non-compliance of the above mentioned rule; therefore, the aforesaid direction has to be interpreted as directory and not mandatory. “Normal rule of construction is that when the statute does not provide for consequences of failure to comply with the direction contained in it, such direction is to be interpreted as directory and not mandatory PLD 1978 Kar. 926.

Similar proposition came under consideration before his Lordship in a case titled Saeeduddin v. IJrd Senior Civil Judge (East) Karachi and another PLD 1992 Kar. 302, whereby the wife had mentioned address of the office of her Advocate as her address.

The petitioner challenged the above mentioned fault by seeking rejection of plaint under Rule 4 of the Sindh Muslim Family Courts Act, 1965 by not giving correct address. According to the petitioner, Sub- rule 2(c) of Rule 4 being mandatory, its non-compliance will entail the penalty of rejection of the plaint but the Court after giving due consideration to the matter opined in the following manner:—

“Rules 4(1) of the Sindh Muslim Family Courts Rules, 1965 provides that in case where family suit is filed by a female it can also be filed on her behalf by her agent. No doubt sub-rule (2) contains “shall” but nowhere in the Rules any provision is made that in case of non-compliance

of such rule the penalty of rejection of the plaint or any other penalty shall follow, j In absence of any penal provision in the Rules in case of noncompliance of Rule 4 of the Sindh Muslim Family Courts Rules, 1965, sub-rule (2) will be taken to be directory in nature.” It has been held in a case titled *Mst. Shaukat Faroze v. District Judge, Bahawalpur* and another PLD 1974 BJ 4 that “in subsection (4) of section 10 of the Act no consequence has been provided, like the provisions as contained in Rules 1 and 3 of Order 14, C.P.C., if no issues are framed. The word “shall” prefixed before the words “frame the issues” makes the intention of the Legislature clear that the issues should be framed invariably on the pleadings of the parties. Since no consequence is provided for not framing the issues; therefore, the requirement in context of the provisions is directory.” . In a case reported as *Maj. Shujait Ali v. Mst. Surraya Begum* PLD 1978 SC (AJ&K) 118, the following principle has been enunciated by drawing a distinction between the mandatory and directory provisions of statute:— “The provisions of the Act regarding transaction of business in a meeting do not necessitate any penalty, therefore, they will be taken to be directory and not mandatory and if they are taken to * be directory, in the light of the above authority, disregard of the provisions in transaction of business would not render such transaction of business as invalid or illegal. On the same point, there is another authority, which is PLD 1966 SC 474, wherein it is observed that a provision is directory and not mandatory where the statute does not provide the consequences of the failure of non-observance.” This view gains further support from a case titled *Andleeb Sahir , Butt v. Family Judge Bagh* and another 1996 SCR 281 wherein consequences of non-compliance of provisions contained in subsection (3) of section 10 of the Family Courts Act, 1993 were determined and it was held that the non-compliance of sections 10 and 12 of the Azad Jammu and Kashmir Family Courts Act, 1993, is at the most an irregularity which does not nullify the judgment and decree of the trial Court. It will be fruitful to point out here that the word “shall” appears in both sections 10 and 12 of the aforesaid Act whereby it has been made incumbent upon the Court under section 10(3) to ascertain the points at issue and make an attempt to effect a compromise between the parties. In the case under report no such effort was made to effect a compromise or reconciliation between the parties in the light of provisions contained in subsection (3) of section 10 of the Act but the apex Court held it an irregularity and opined that the judgment of the trial Court cannot be regarded to have been vitiated merely for noncompliance of the section 10 of the Family Courts Act, ' So far as *Sabir Hussain's* case 1997 MLD 2962 is concerned, the nature of word “shall” was not held to be mandatory appearing in Family Courts Rules; therefore, aforementioned report does not render any help to the case of respondents.

* It will be useful to mention here that Rule 3(1) stated above also postulates that a plaint shall be presented to the Court by the plaintiff or through a counsel, and where the plaintiff is a female by her agent. It is settled position of law that a statute must be read as a whole and one provision cannot be interpreted in isolation of the other 1996 CLC 129.

It has been observed in a case titled *Fouji Sugar Mills v. Province of Punjab* 1996 CLC 592 that various provisions of sections/statute must be interpreted harmoniously 16 each other and one provision cannot be interpreted in such a manner that the other becomes nugatory.

In a case reported as *The State v. Zahid Nadeem* and another 1996 MLD 506, it was reported that the Courts are duty bound to interpret different sections in a statute in order to harmonize its various r sections and subsections.

The crux of the above cited authorities shows that a provision of a section/statute or rule must be read as a whole and to be interpreted in a manner to harmonize its various sections and subsections while determining its nature. It also follows from the aforementioned case-law that non-compliance of rule 3(1) of Family Courts Rules does not vitiate For what has been stated above, I accept both appeals filed by *Mst. Kousar Begum* and *Muhammad Ishfaq*, appellants

while setting aside the impugned decisions dated 16-2-2005 and 14-10-2004 with the direction that the learned Judge, Family Court after affording an opportunity of hearing* to the parties shall proceed further in accordance with law. '' H.B.T./18/Sh.C.(AJ&K) . , Appeals accepted.

easylaw Case No.

1146183

[Download Case](#)

Copyright © 2021 easylaw.ai. All Rights Reserved. | Disclaimer (<https://www.easylaw.ai/disclaimer>)